

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
DERRICK TINSLEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
JORGE SANTON, POLICE OFFICER KONRAD
TYBOROWSKI, POLICE OFFICER PASCUAL
MELLO, POLICE OFFICER RAMOS, and "John
Does 1 through 6," Police Officers of the New
York City Police Department,

Defendant.
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SUMMONS

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
Plaintiff's residence

Plaintiff resides at:
41 Nostrand Avenue
Brooklyn, New York 11206

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: BROOKLYN, NEW YORK
September 16, 2022


BY: FABIEN ROBLEY, ESQ.
FRIEDMAN SANCHEZ, LLP
Attorneys for Plaintiff(s)
16 Court Street, Suite 2600
Brooklyn, New York 11241
(718) 797-2488

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DERRICK TINSLEY,

Index No.

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
JORGE SANTON, POLICE OFFICER KONRAD
TYBOROWSKI, POLICE OFFICER PASCUAL
MELLO, POLICE OFFICER RAMOS, and "John
Does 1 through 6," Police Officers of the New
York City Police Department,

Defendants.

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Plaintiff by FRIEDMAN SANCHEZ, LLP, his attorneys, complaining of the defendants
above named respectfully alleges the following:

AS AND FOR A FIRST CAUSE OF ACTION:

1. At all times hereinafter mentioned, plaintiff was and is a resident of New York County in the State of New York.
2. Upon information and belief, at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, is a domestic municipal corporation.
3. Plaintiff has complied with all the conditions precedent to the bringing of this action, and has complied with the provisions of the statute in such cases made and provided, and in particular, has presented the claim hereinafter set forth to the Comptroller of The City of New York for adjustment and more than thirty (30) days have elapsed since the presentation of said claim, and said claim remains unadjusted, and said Comptroller has failed and refused to make

any adjustments of said claim, and the plaintiff has, prior to the bringing of this action, and within ninety (90) days after the claim herein arose, duly served with the Comptroller of The City of New York, of the intention to sue upon said claim hereinafter set forth.

4. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, operated and controlled a department known as THE NEW YORK CITY POLICE DEPARTMENT.

5. On May 23, 2022, at about 8:00 p. m. the plaintiff was lawfully within the premises and business known as Family Dollar, located at 118 Nostrand Avenue, in the County of Kings, City and State of New York.

6. That at the aforesaid time and place, the defendant, THE CITY OF NEW YORK, by its agents, servants and employees detained the person of the plaintiff and restrained the plaintiff.

7. That at the aforesaid time and place, the defendant, NEW YORK CITY POLICE DEPARTMENT, by its agents, servants and employees detained the person of the plaintiff and restrained the plaintiff.

8. That at the aforesaid time and place, Officer JORGE SANTOS detained the person of the plaintiff and restrained the plaintiff.

9. That at the aforesaid time and place, Officer KONRAD TYBOROWSKI detained the person of the plaintiff and restrained the plaintiff.

10. That at the aforesaid time and place, Officer PASCUAL MELLO detained the person of the plaintiff and restrained the plaintiff.

11. That at the aforesaid time and place, Officer RAMOS detained the person of the

plaintiff and restrained the plaintiff.

12. In effecting the restraint and detention of the plaintiff, the said defendants, their agents, servants and employees acted in concert.

13. The said detention and restraint of plaintiff was committed by defendants, their agents, servants and employees without just cause or provocation, willfully, wantonly, maliciously, recklessly, without any fault whatsoever on the part of plaintiff, and contrary to law.

14. The said detention and restraint was effectuated with excessive force, and without any lawful basis.

15. At the time of said restraint and detention the employees, servants and agents of the said defendants were acting within the scope of their authority and employment and their acts hereinbefore alleged were done in furtherance of the business of the defendants, and in the interests of the defendants.

16. During the detention and restraint of plaintiff by the defendants, their agents and employees, plaintiff was physically assaulted and thereafter restrained and placed in handcuffs.

17. Solely by reason of the foregoing plaintiff was injured, became physically sick and disturbed and so remains, and sustained painful emotional distress and humiliation, mortification, shame, disgrace and mental pain, and incurred expense. Plaintiff believes that the aforesaid conditions are permanent, and plaintiff has lost time from his employment and may in the future be compelled to lose additional salary, earnings and advancement.

AS AND FOR A SECOND CAUSE OF ACTION:

18. Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1" through "17" inclusive of the complaint herein with the same force and effect as

if fully set forth herein at length.

19. Thereafter, on May 24, 2022, plaintiff was arrested by the said defendants, their agents, servants, and employees at the aforesaid location and was placed in a police cruiser thereat, and driven to the 79th Precinct/Housing PSA 3 located at 263 Tompkins Avenue, Brooklyn, New York.

20. This arrest and continued detention was effectuated by defendants without probable cause and without any semblance of a lawful basis. Defendants at the time of this arrest and detention knew or should have known that the allegations, or any future allegations, as to plaintiff would be false.

21. Throughout most of the aforesaid period plaintiff was handcuffed and was never formally apprised of his rights, nor was he ever formally apprised of the charges against him.

22. Plaintiff was detained at a time that said defendants, their agents, servants and employees who arrested and imprisoned plaintiff, or caused the arrest and imprisonment of plaintiff, had actual knowledge of the fact that plaintiff had not committed any crimes, and knew that there was no lawful basis for his initial detention or for his continued detention.

23. The said arrest and imprisonment of plaintiff by said defendants was a false arrest and an unjust imprisonment done without any warrant or pretense of legal process, maliciously and without any reasonable or probable cause therefor.

24. Solely by reason of the foregoing plaintiff was deprived of his liberty, subjected to ridicule, scorn and derision by those knowing of his arrest and imprisonment, was deprived of the society and companionship of his family, and was otherwise greatly harmed and injured.

AS AND FOR A THIRD CAUSE OF ACTION

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs numbered “1” through “24” inclusive of the complaint herein with the same force and effect as if fully set forth herein at length.

26. The acts and omissions of these defendants set forth hereinabove with particularity were actuated by malice towards plaintiff, and as a result of a wanton, reckless and willful disregard of plaintiff's rights, sanctity, safety, and security. As a result thereof, plaintiff prays for an award of punitive damages against the said defendants.

AS AND FOR A FOURTH CAUSE OF ACTION:

27. Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs numbered “1” through “26” of the complaint herein with the same force and effect as if fully set forth herein at length.

28. That at all times hereinafter mentioned, the defendants, their agents, servants, and employees were incompetent, dangerous, and vicious, of all of which the defendants had knowledge but that the said defendants wholly failed and neglected to take any steps whatsoever to protect individuals lawfully pursuing their business, and this plaintiff, from the aforesaid agents, servants and employees, and in otherwise being negligent in the premises.

WHEREFORE, plaintiff, DERRICK TINSLEY, demands judgment against the defendant in an amount which exceeds the jurisdictional limits of all lower Courts, all together with the costs and disbursements of this action.


BY: ~~FAB~~BIEN ROBLEY, ESQ.
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16 Court Street, 26th Floor
Brooklyn, New York 11241
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SUMMONS AND COMPLAINT

FRIEDMAN SANCHEZ, LLP

Attorneys for Plaintiff(s)

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TO: